

1.

CASE #	CASE NAME	HEARING NAME
CVRI2300518	SOTO JUAREZ vs RANCHO FRESCO MARKETS, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested:

1. Confirm that defense counsel is not aware of other cases making similar class, collective or representative claims.
2. Discuss bidding process—for selection of administrator and why Rust Consulting is the appropriate choice. There is no declaration from Rust Consulting as required by the CMO.
3. Papers refer to a declaration of Eric Bishop, but no such declaration has been filed.
4. PAGA release does not appear to be limited to the claims stated in the LWDA notice.
5. Proposed order does not attach the notice, objection or exclusion forms.
6. No declaration from defendant concerning class members' likely age, education, experience, or ability to understand notice in English.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305850	LOVE vs PULTE HOME COMPANY, LLC	MOTION FOR SUMMARY ADJUDICATION ON 2 ND AMENDED COMPLAINT FOR CONSTRUCTION DEFECT

Tentative Ruling: No tentative ruling, appearances requested.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507342	GARCIA vs RIVERSIDE UNIVERSITY HEALTH SYSTEM FOUNDATION	DEMURRER ON 2 ND AMENDED COMPLAINT

Tentative Ruling: Plaintiff Melissa Garcia brings this action against defendant Riverside University Health System Foundation and Riverside County, alleging various wage and hour claims, including that she was not paid minimum and overtime wages, sick leave, wages due on separation from employment, not provided rest or meal breaks and accurate wage statements. The SAC includes derivative claims for violation of the Unfair Competition Law and for civil penalties under PAGA. The action includes class claims.

County demurs to the second through fifth causes of action (for failure to pay minimum wages and sick leave and for failure to provide meal and rest breaks) because plaintiff did not allege compliance with the Government Claims act and did not exhaust administrative remedies. It asserts that the meal and rest break claims fail because the